

Amendment No. 1 to SB1141

Reeves

Signature of Sponsor

AMEND Senate Bill No. 1141

House Bill No. 897*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 68-221-709, is amended by deleting the section and substituting:

(a) If the quarterly analysis of a water sample from a public water system by a certified laboratory confirms that the level of fluoride in the sample exceeds seven-tenths milligrams per liter (0.7 mg/L), the public water system from which the sample was taken must:

(1) Obtain laboratory analysis of water samples monthly for fluoride levels; and

(2) Notify all of its customers that a water sample tested exceeded seven-tenths milligrams per liter (0.7 mg/L) of fluoride in a manner established by the department.

(b) Once the monthly analysis of water samples for fluoride conducted pursuant to subdivision (a)(1) confirms that the fluoride level in samples is less than seven-tenths

milligrams per liter (0.7 mg/L) for three (3) consecutive months, the public water system may resume quarterly laboratory analysis for fluoride.

(c) This part does not prohibit naturally occurring fluoride in the water supply; provided, that fluoride levels do not exceed the maximum levels permitted by federal law or federal regulations, or seven-tenths milligrams per liter (0.7 mg/L), whichever is less.

SECTION 2. Tennessee Code Annotated, Section 68-221-708(c), is amended by deleting the subsection and substituting:

(c) A public water system fluoridating its water supply on or after May 1, 2025, shall:

(1) Reduce the addition of fluoride or fluoride components to the water supply, to comply with § 68-221-709, no later than July 31, 2025; and

(2) Provide written notice to their customers informing them of the reduction of fluoridation and specify the date on which fluoridation will be reduced. The notice must be issued thirty (30) days prior to the reduction of fluoridation.

SECTION 3. Tennessee Code Annotated, Section 68-221-711, is amended by adding the following new subdivision:

(10) The addition of fluoride, or a fluoride compound to the public drinking water supply by the operator of a water supply system in this state that will result in the drinking water supply reaching a level greater than seven-tenths milligrams per liter (0.7 mg/L), as well as levels seventy-five hundredths milligrams per liter (0.75 mg/L) or greater for sixty (60) consecutive days. A violation of either level is considered a separate violation.

SECTION 4. This act takes effect May 1, 2025, the public welfare requiring it.